

7. **S-CV-0054772 Deutsche Bank v. New Century Mortgage**

This tentative ruling is issued by the **Honorable Angus Saint-Evens**. If oral argument is requested, it will be heard on **September 28, 2026 at 8:30 a.m. in Department 32**.

Motion to Discharge Receiver and for Exoneration of Surety

The court has reviewed court-appointed receiver Richardson Griswold's motion for discharge of receiver and exoneration of surety and the declaration and exhibit attached thereto. No opposition or objections have been filed.

The motion is granted as prayed. The receiver's report is hereby approved, and all activities of the receiver in connection with his appointment as described therein are hereby confirmed and approved. The bond is exonerated. The receiver is discharged and the receivership appointment is terminated. The court retains jurisdiction over any matters or claims that later may arise in connection with the receiver.

8. **S-CV-0055052 Alvarado, Giovanni Perales v. Kniesels Collision**

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Approval of PAGA Settlement

Plaintiff moves for approval of the parties' PAGA settlement. No opposition has been filed. The court observes two procedural issues that must be addressed prior to reaching the merits of the motion.

First, the motion is supported by insufficient notice. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by 2 court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Here, the motion was filed and served without affording the additional 2 court days for electronic service.

Second, plaintiff submits evidence the PAGA notice was sent to the LWDA on February 7, 2025 and that an amended PAGA notice letter was sent to the LWDA on August 13, 2026. Labor Code section 2699.3(a)(2)(A) requires the Department to act within 60 calendar days of a PAGA notice or the time to act lapses within 65 calendar days. Here, that time period has not yet lapsed from the date of the amended notice. Accordingly, this motion is brought prematurely.

In light of the above issues, the court on its own motion continues this motion to **November 3, 2026 at 8:30 a.m. in Department 32**. Plaintiff is directed to file and serve a notice of continued hearing by October 2, 2026. Plaintiff is also directed to file and serve a supplemental declaration indicating whether the LWDA has given any indication it intends to investigate the alleged violations by October 23, 2026.

Case Management Conference

The case management conference is likewise continued to **November 3, 2026 at 8:30 a.m. in Department 32.**

9. S-CV-0055413 Manikas, John v. Ryan, Donald

The demurrer to the first amended cross-complaint is continued to be heard by the **Honorable Michael W. Jones on November 19, 2026 at 8:30 a.m. in Department 3.** Department 3 is located at 101 Maple Street, Auburn, California 95603.

10. S-CV-0055963 Routon, Mariha Rayanne v. Lyon dba Taco Bell

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Approval of PAGA Settlement

The unopposed motion is granted. The court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code § 2699, subd. (l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.) The court has carefully reviewed and considered the PAGA settlement and plaintiff's moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA. The court approves the PAGA settlement, approves ILYM Group, Inc. as settlement administrator and approves their fees of \$4,950, awards plaintiff's counsel attorneys' fees of \$36,207.50 and litigation costs of \$5,674.59, approves \$10,000 as a service award payment to plaintiff, and incorporates by reference the findings and others outlined in the proposed order submitted in conjunction with this motion.

The court schedules a final accounting hearing on **February 9, 2027 at 8:30 a.m. in Department 32.** Plaintiff shall submit a final accounting report no later than January 22, 2027. **The court also vacates the case management conference scheduled for October 6, 2026.**

11. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

The motion to set aside entry of default is dropped from calendar as no moving papers were filed with the court.